सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part III Date: 30.01.2018

दिनांक 11.01.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 11.01.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 11.02.2018 को 11:30 बजे हुई। जिसकी अध्यक्षता संयुक्त रूप से श्री विनायक आज़ाद, आयुक्त (आयात) और श्री एस. अनंत कृष्णन, आयुक्त (निर्यात) द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 11.01.2018 at 11.30 A.M. and was jointly presided over by Shri Vinayak Azaad, Commissioner of Customs(Import) and Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री राजू सक्थिवेल/Shri Raju Sakthivel अपर आयुक्त (निर्यात)/Addl. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री कैलास वि. कारखिले/ Shri Kailas Vinayak Karkhile, सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री प्रसाथ जे./ Shri Prsath J., AC(Import) सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री एम. सी. शेख/Shri M. C. Shaik, AC(Import) सह. आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Vishwa Uchil	SBI
S. M. Sharma, K. D. Dhule	Air India
Manoj Singh, Cdr. Lokesh (Retd.), Mayilvanan T., Mohamed Nasir, Nandan Kanchan, Ashok Satavase,	MIAL (Custodian)
Dushyant Mulani, Ketan Desai, Kaushal Thakker, Sanjeev Harale	BCBA (formerly known as BCHAA)
Nimish Desai, Paresh Shah	WISA
Bala Ayer, Chaitaly Mehta	ACAAI
Vaishali Kulkarni	COSIA
Sheshu Kumar	Jet Airways
Harish Zade	Lufthansa

बैठक की शुरुआत में सभी प्रतिनिधियों ने आयुक्त (आयात) महोदय को अपना परिचय दिया। तत्पश्चात, आयुक्त (आयात) महोदय ने अपने आरंभिक भाषण में डिजिटलीकरण की उन्मुख हो रहे चरणों तथा बोर्ड के डिजिटलीकरण के दिशा में की गई नई पहल 'e-SANCHIT' पर प्रकाश डाला। उन्होंने सभी हितधारकों को राष्ट्र निर्माण के लिए मिलकर काम करने के लिए धन्यवाद किया

The meeting started with the introduction of house to the Commissioner of Customs (Import). The Commissioner of Customs(Import) in his introductory speech enlightened at the transforming phase towards 'DIGITALISATION' and a mile stone step taken by Board i.e., 'e-SANCHIT'. He thanked to all stakeholders to work together towards nation building.

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1. Points from the previous PTFC meetings which were taken up for discussion:

A. Temperature controlled facility for Meat, Fish, Frozen foods:

In the previous meeting, the representative of MIAL intimated that the process of modifying an additional temperature control unit to -25°C is in progress. As the technical parts for this conversion needs to be imported, the whole process will take about 6-7 months time.

The representative of MIAL stated that they have already converted the existing cold storage chamber into freezer for Meat, Fish and Frozen Foods. The same is under testing and observation and assured the house the inputs will be given within 10 days whereas the facility will be live by the end of this year.

In this instant meeting the representative of MIAL informed that the machine is operational now. The chairman stated that the stakeholders may submit their feedback on the facility provided by the MIAL.

[Point closed]

B. Weeding out old Dockets

In previous meeting, representative of M/s Newgen intimated that after scanning, the files/dockets are stored in the boxes and placed at the Pipeline Warehouse. However as the storage space at the warehouse is fully occupied, these dockets are lying in the Shed. The documents of 2011 are already available in soft copy, they may be permitted to weed out the documents of 2011, thus creating storage space for the documents of the current year.

MCD(I) Section informed that they have sent a letter to Document Management Systems M/s. Newgen Software Technology permitting them to weed out the dockets of export of the year 2011 also to Cargo(Admn), GVK, MIAL, Air Cargo Complex, Mumbai.

The representative of MIAL stated that they had already started moving the old records and at present they are planning to move the scanned copies of 2015 and 2016 in co-ordination with M/s. Newgen from the Import Warehouse Marol for creation of more space for current documents. They also stated that there are lot of files, records, documents are lying in the shed and office areas for which proper list is required for shifting the same. After getting permission from Customs Deptt. the same will be effectively shifted and weeded out.

In the instant meeting the representative of MIAL reiterated for requirement of permission from Customs deptt. and requested to depute two officers to identify the documents/records which is required to be weeded out.

The chairman assured the representative of MIAL for necessary action in this regard.

[Action: MIAL, AC/MCD (I) & (X)]

C. LEO are not reflecting in DGFT

In the previous meeting the representatives of ACCAI informed that many shipping bills which are given LEO in the ACC, Mumbai, are not reflecting in DGFT website with the result, it requires re-transmission. They further informed that submit the Shipping Bill/LEO to SEVOTTAM Desk and the officer at SEVOTTAM Desk transships the Shipping Bill/LEO to DGFT.

The Chairman informed the house that the core switches are going to be changed and hoped that the problem will be go away on introduction of new switches.

In the instant meeting the chairman suggested to drop the point for the time being.

[Point dropped]

D. Simplification in 1st time import procedure

In the previous meeting, the representative of BCBA stated that procedure of 1st time import registration after roll out of GST needs to be reviewed for registration in a time bound manner.

The representative of BCBA requested for issuance of a Public Notice in line with Public Notice No. 112/2017 issued from JNCH, Nhava-Sheva whereby only one document ie. either copy of Adhaar or IT Retrun is required to be submitted.

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The Joint Commissioner of Customs (Import) informed that a Public Notice No. 48/2017 has been issued by the department. He further added that submission of Adhaar Copy is not sufficient as the purpose is not only to establish the identity of the importer but it is to identify the financial condition or credential of the importer or their firm.

The chairman assured that the issue will be re-examined and area of delay and inconveniences will be find out and sorted out.

[Action: ADC/Import]

E. **Offloading of Export Cargo**

In the previous meeting, the representative of ACAAI stated that offloading of export cargo from the agent's truck is slow in Air India areas as no loaders are available. The trade representative expressed that there is very poor working facility in Air India Export Shed. It was also pointed out that no senior officer/supervisor is available in the dock area to look into the problem.

The chairman directed the representative of Air India to put extra loaders and depute one supervisor for each shift in the Docks area. Air India was also requested to display Mobile Number of such supervisor/manager. This will help the trade for quick solution of problems faced by trade.

[Action: AIR INDIA]

F. **SCN for drawback for period which already been closed**

In the previous meeting, the representative of ACAAI stated exporters are once again receiving SCN for drawback for the period which has already been closed and SCNs are dropped. They requested that all shipping bills should be closed immediately after SCN is dropped.

In the instant meeting, the Addl. Commissioner of Customs (Export) stated that in some cases the SCNs have been issued for different periods but exporters have submitted negative statement for only some of the period hence such SCNs cannot be dropped till the submission of negative list for full period under the SCN.

[Action: AC/DBK(X)]

G. **NOC for import of Vaccine**

In the previous meeting the representative of BCBA informed the house that while import of vaccine the documents were only transferred to ADC for their NOC. Now for some of the days it has been noticed that import vaccine is also being transferred to Animal Quarantine for NOC as well as ADC NOC which causes undue delay of consignment.

The chairman stated that this is system (ICES 1.5) error and the same will be taken up with the DG(System) and Single Window Team of CBEC to resolve this at the earliest. He further added that the subject issue has also been taken up by the Commissioner of Customs with Commr.(RMD) and requested to inform such cases to Commr.(RMD) also.

[Action: AC/EDI]

H. **Waiver of Late sub fee in term of Notification 26/2017 NT should be available on the same day.**

In the instant meeting the representative of BCBA informed that at present trade is experiencing delay of atleast 2 – 3 days to obtain the waiver of Late submission charge, for the delay which is beyond the control of the trade. They requested that waiver should be available on the same day of the application to avoid payment of penal demurrage charges and to facilitate timely clearance. They also requested to the MIAL authorities should also waive the demurrage charges arisen due to the procedural timing for waiver of late submission charge.

The chairman assured that as far as possible efforts will be made to decide the cases of waiver on the same day.

[Point Closed]

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I. Increase in dwell time due to non-intimation of arrival of cargo by FedEx, UPS

In the instant meeting the representative of BCBA informed that on account of late intimation for arrival of cargo by carrier such as FedEx, UPS etc., there is increase in dwell time for clearance. This results in delay of clearance and non-compliance of Custom Notification No. 26/2017 NT which mandates filing of Bill of Entry in advance or on the same day of arrival.

They suggested that there should be proper accountability of such stakeholders, who should be made to follow the compliance and endeavor of CBEC for timely clearance of Import consignments. At present, trade is suffering delay in clearance, payment of demurrage charges, payment of late submission fee etc. on account of these carriers.

The representative of MIAL informed the house that they had taken a meeting with the representative of the UPS and FedEx and submitted the segregation work is being done after landing of flight into India which causes delay in further clearance process. They suggested that such segregation should be carried out at the initial point of loading to avoid unnecessary delay.

The Chairman agreed to the suggestion and directed the representative of MIAL to hold a meeting with FedEx and UPS in this regard. The Chairman also suggested that representatives of FedEx and UPS should also attend the PTFC meeting.

[Action: MIAL, FedEx, UPS]

J. Proper working of 24x7 facility

In the instant meeting the representative of BCBA stated that for timely clearance of import / export cargo, CBEC has introduced 24x7 schemes. However it is experienced that all stakeholders are not available to facilitate clearance under 24x7. Inspite of presence of Custom Officers, the other stakeholders such as Airlines, Console Agents are not available on holidays, 2nd Saturdays and even on normal working day also they have restrictive working hours.

They suggested that for reduction of dwell time for clearance, all stakeholders must follow the guidelines issued by CBEC.

The chairman directed to the representative of MIAL to hold a meeting with all Airlines/Console Agents/Custodians for 24X7 working facility in the ACC.

[Action: MIAL]

K. Goods Registration counter required in each import shed for timely clearance

In the previous meeting the representative of BCBA informed that at present, trade is experiencing delay for Goods Registration as there is only one counter in the Air India Shed for clearance of import consignments. As already represented vide their letter No BCHAA/KD/443/2017 dated 1/8/2017 they requested that goods registration counter be available in each import shed.

In the instant meeting the Asstt. Commissioner of Customs, EDI informed the 1.5 systems have been installed in all Import shed and space for registration counters have been identified and Registration facility will be started soon.

[Point dropped]

L. Online Facility for payment of Amendment charges

In the instant meeting the representative of ACAAI informed the house that for payment of amendment charges, the payees have to follow very long procedure. Any amendments charges on BE should appear on TR-6 and there should be access in ICES 1.5 system that Appraiser could input this charge so that the payee can pay the amendment charges online. This will save them going to cash counter for payment of amendment charges. This will save time and thus reduce dwell time.

The Chairman informed that matter has already been taken up with the DG(System) for creation of additional slot in this regard.

[Point dropped]

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2. **New point for discussion in this meeting**

A. **Release of DO**

In the instant meeting, the representative of ACAAI submitted that sometimes delivery of import consignments is delayed because the DO is not yet released by the Airline / Consol agents. This increases the dwell time and unnecessary demurrage. Request customs to please issue a PN that all DOs should be released within one hour after payment is made.

[Action: MIAL/Air India]

B. **Online facility for reply of Query**

In the instant meeting, the representative of ACAAI submitted that at present any query raised by the AO on the BE, can be answered on-line only by the Service Centre. A customs broker cannot answer on-line from his office. In Courier Cell, the Customs broker can reply to queries raised by the AO on-line. This facility should be extended to Customs Broker in cargo which is already happening in the Courier Cell.

The Chairman stated matter will be examined.

[Action: AC/EDI]

C. **EGM error nomenclature**

In the instant meeting, the representative of ACAAI submitted that the nomenclature of EGM errors be publish so that they can go to the right department to get it rectified.

The Chairman directed the representative of the ACAAI to approach to the Addl. Commissioner of Customs (Export), ACC.

[Action: Point Closed]

D. **Rounding of TSP charges by Air India**

In the instant meeting, the representative of ACAAI submitted that Air India's rounding up on TSP charges is very high. Rounding up or down should be done to the next higher or lower rupee and not to higher value of five rupees. For example Rs 330.40 should become Rs 330.00 and not Rs 335.00. They further stated that Air India does not believe in rounding down. They only round up. This is not correct.

The Chairman directed the representative of Air India submit clarification in this regard and take suitable action to avoid such rounding pattern.

[Action: Air India]

E. **Amendment of AD Code in EDI system**

In the instant meeting, the representative of BCBA submitted that Amendment of AD code in the Bill of Entry is not being done. This is creating issues for the importers in certain cases. They suggested that the amendment of AD code whenever required by the importer may be allowed to be carried out in the EDI system.

The Asstt. Commissioner of Customs, EDI informed the house that once the payment is made against the Bill of Entry with a particular AD Code the same cannot be amended. Otherwise, it can be amended.

[Action: Point Closed]

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F. **Implementation of Pure Agent concept**

In the instant meeting, the representative of BCBA submitted that 'Pure Agent' concept in GST Billing for exports is still not started by the MIAL.

The representative of MIAL submitted that they charge as per the master list. However, the billing system is under review.

[Action: MIAL]

G. **Sharing of CCTV footage**

In the instant meeting, the representative of BCBA submitted that there are certain instances observed regarding shortage of items in the imported consignment at the time of clearance. It needs to be verified, whether it is a case of pilferage after landing or not. They requested that in such cases, CCTV footage should be shared with the importer/CB as and when required.

The representative from MIAL informed the house that the entire shed is under the surveillance of CCTV and they share the CCTV footage with the Intelligence and Administrative bodies. They stated that CCTV footage can be shown to the Importer but it is not possible to give copies of the same.

[Action: MIAL]

3. बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदयों आयुक्त महोदय (आयात) एवं आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Chairman of the PTFC, Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

30/1/18

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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